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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, June 29, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101	Carranza v. Corbin Reeves Construction, 2025-01520792	KURT FISCHER STRUCTURAL ENGINEERING/WAVERING'S DEMURRER TO COMPLAINT MA3 CORP./REEVES DEMURRER TO COMPLAINT MOTION TO STRIKE COMPLAINT CONTINUED to 08/31/2026 to allow meet and confer.
102		
103		
104		
105	Hodges v. Fillman, 2024-01442297	MOTION TO CONSOLIDATE – DENIED Plaintiffs/cross-defendants George Thomas Hodges, Jr. and Jane Wong (“Plaintiffs”) move for an order consolidating this action with Michael P. Fillman, et al., v. George Thomas Hodges, Jr., et al., Case 30 2025- 01522929-CU-NP-CJC (the “Fillman Action”). The court previously determined that the cases were not related. When there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc., § 1048(a).)

This action involves nuisance, trespass, and premises liability cross-claims, with each side alleging that the other side caused property damage by water intrusion.

The Fillman Action includes causes of action for invasion of privacy, harassment, trespass, elder abuse, financial abuse of an elder, and declaratory and injunctive relief and is based on allegations that Plaintiffs installed surveillance cameras with audio capability directed at the pool area, stairs, and private outdoor living spaces on property owned by the plaintiffs in the Fillman Action.

Plaintiffs contend consolidation is warranted because the actions arise out of the same series of events and consolidation would avoid unnecessary duplication of the presentation of evidence and witnesses. Plaintiffs argue that because the Fillman Action was filed in response to camera and audio recordings produced during discovery in the instant action, the Fillman Action is intertwined with this matter. Plaintiffs also argue that there is a risk of inconsistent findings if consolidation is not ordered, as one jury could find that Plaintiffs' communications were reasonable efforts to address property damage while another could determine those same communications constitute harassment or elder abuse.

While these actions involve the same parties and arise out of the parties' relationship as neighbors, the claims asserted in each do not involve common questions of law or fact. The Fillman Action claims for invasion of privacy, harassment, and abuse involves issues of whether Plaintiffs' installation of a surveillance camera invaded a right to privacy and subjected their elderly neighbors to mental suffering and harassment to such extent as to constitute elder abuse. These issues are unrelated to Plaintiffs' claims of water intrusion, property damage, and property encroachment. Thus, the Court finds that consolidation would not avoid unnecessary costs or delay and that consolidation is unwarranted.

The Motion to Consolidate is DENIED.

		Moving party to give notice.
106	Le v. CUIAB, 2026-01538470	PETITION FOR WRIT OF MANDATE Petitioner has filed a petition for writ of administrative mandate. No proof of service on the respondent is on file. Petitioner should be prepared to advise the court when and how service was effected, or why it has not been effected.
107	Lee v. Fountain Valley, 2023-01358010	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION – GRANTED as to the second and third causes of action; no tentative ruling as to the first cause of action. Plaintiff Hye Jin Lee is a Korean-American woman who was hired by the City of Fullerton (the City) on March 9, 2020 as the Director of Public Works. (Undisputed Fact (UF) 1.) City Manager Maggie Le terminated Plaintiff's employment on May 10, 2023 (UF 69) Plaintiff sued the City for Racial Discrimination, Age Discrimination, and Gender Discrimination in violation of the Fair Employment Housing Act ("FEHA", Gov. Code, § 12940 et seq.) (Although the caption of Plaintiff's second amended complaint (SAC) lists a fourth cause of action for wrongful termination, no such cause of action is separately stated.) The City filed a motion for summary judgment and/or adjudication arguing (1) it had legitimate nondiscriminatory reasons for terminating Plaintiff's employment that were not pretextual, (2) there was no temporal proximity between the City's employees' comments and the termination of Plaintiff's employment, (3) plaintiff cannot show she was replaced by a significantly younger person, and (4) Plaintiff cannot establish evidence of a discriminatory motive as to the gender discrimination claim. Plaintiff filed an opposition brief, and the City filed a reply brief. <u>I. Burden on Summary Judgment in Employment Law Cases</u>

“For purposes of evaluating FEHA discrimination claims, California courts have adopted the burden-shifting framework enunciated by the United States Supreme Court in *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792, 93 S.Ct. 1817, 36 L.Ed.2d 668.” [Citation.] The framework was originally developed for use at trial.” [Citation.] When applied at summary judgment, it works as follows: The ‘employer, as the moving party, has the initial burden to present admissible evidence showing either [1] that one or more elements of plaintiff’s prima facie case is lacking or [2] that the adverse employment action was based upon legitimate, nondiscriminatory factors.’ [Citation.] If the employer satisfies its initial burden, it will be entitled to summary [adjudication] unless the plaintiff produces admissible evidence which raises a triable issue of fact material to the defendant’s showing.” ((*Hodges v. Cedars-Sinai Medical Center* (2023) 91 Cal.App.5th 894, 904.)

“[T]o avoid summary judgment [once the employer makes the foregoing showing], an employee claiming discrimination must offer substantial evidence that the employer’s stated nondiscriminatory reason for the adverse action was untrue or pretextual, or evidence the employer acted with a discriminatory animus, or a combination of the two, such that a reasonable trier of fact could conclude the employer engaged in intentional discrimination.” (*Wills v. Superior Court* (2011) 195 Cal.App.4th 143, 160.)

“Whether summary adjudication is appropriate will depend on a number of factors, including the strength of the plaintiff’s prima facie case, the probative value of the proof that the employer’s explanation is false, and any other evidence that supports the employer’s case.” (*Hodges v. Cedars-Sinai Medical Center* (2023) 91 Cal.App.5th 894, 904.)

The employee’s “subjective beliefs in an employment discrimination case do not create a genuine issue of fact; nor do uncorroborated and self-serving declarations.” (*King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 433.) To the contrary, the employee’s

evidence must prove, by non-speculative evidence, the existence of “an actual causal link between prohibited conduct and termination.” (Id. at pp. 433-434.)

“The [employee] cannot simply show that the employer’s decision was wrong or mistaken, since the factual dispute at issue is whether discriminatory animus motivated the employer, not whether the employer is wise, shrewd, prudent, or competent.” (Wills v. Superior Court (2011) 195 Cal.App.4th 143, 160.)

“[M]any employment cases present issues of intent and motive ... [which] ‘are rarely appropriate for disposition on summary judgment, however liberalized [summary judgment standards may] be.’ ” (Hodges v. Cedars-Sinai Medical Center (2023) 91 Cal.App.5th 894, 904; see Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 286 [“[M]any employment cases present issues of intent, and motive, and hostile working environment, issues not determinable on paper;” such cases are “rarely appropriate for disposition on summary judgment.”].)

II. First Cause of Action: Racial Discrimination

Plaintiff’s first cause of action is for racial discrimination in violation of Government Code section 12940.

Defendant argues that (1) there is no temporal proximity between the alleged comments and Plaintiff’s termination, (2) there were numerous legitimate business reasons for Plaintiff’s termination, and (3) Plaintiff fails to establish pretext.

“A claim of racial discrimination under FEHA is a ‘disparate treatment’ claim.” (Arnold v. Dignity Health (2020) 53 Cal.App.5th 412, 424.) “The elements of a disparate treatment claim are ‘(1) the employee’s membership in a classification protected by the statute; (2) discriminatory animus on the part of the employer toward members of that classification; (3) an action by the employer adverse to the employee’s interests; (4) a causal link between the discriminatory animus and the adverse action; (5) damage to the employee; and (6) a causal link between the adverse action and the damage.’ ” (Id., 424–425.)

The court requests that the parties be prepared to address the following questions with regard to the issue of temporal proximity: (1) what racially charged statements were made? (2) when were those comments made? (3) should the court consider only the temporal proximity between the racially charged comments and the termination of Plaintiff's employment, or also the proximity with Plaintiff's poor performance reviews? The parties are asked to give consideration to the opinion in *Arteaga v. Brink's Inc.*

III. Second Cause of Action: Age Discrimination

"In the context of the usual age discrimination case, a prima facie case of age discrimination arises when the employee shows that: (1) at the time of the adverse employment action, the employee was 40 years of age or older; (2) some adverse employment action was taken against the employee; (3) at the time of the adverse action the employee was satisfactorily performing his or her job; and (4) the employee was replaced in his or her position by a significantly younger person." (*Arnold v. Dignity Health* (2020) 53 Cal.App.5th 412, 424; see also *Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 355.)

"In order to establish a prima facie case of age discrimination in termination from employment the plaintiff must establish, inter alia, he was performing satisfactorily at the time of termination and he was replaced in his position by a significantly younger person." (*Smith v. International Brotherhood of Electrical Workers* (2003) 109 Cal.App.4th 1637, 1657.)

"Where an age-protected worker is directly replaced by a person not significantly younger, there may be no basis to suspect a motive of prohibited bias." (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 366.)

In the SAC, Plaintiff alleges that "Defendants replaced her with a younger white male." (SAC, ¶ 35.) Plaintiff has not alleged that "jobs [were] eliminated and duties reallocated during a general work force reduction" –

Plaintiff only alleges that her replacement was younger. (See *Guz v. Bechtel* at p. 366.)

Defendant has established the following as undisputed material facts.

- “At the time of termination, Plaintiff was 53 years old and was born in 1969. (Plaintiff’s Depo, Vol. I, 15:9-10, Ex. “1”).” (ROA 164, UF No. 79.)
- “Following Plaintiff’s termination, Le appointed Stephen Drinovsky (“Drinovsky”) to serve as the Interim Public Works Director. Drinovsky was 66 years old at the time. Drinovsky served in that capacity from May to September 2023, under 4 months. (Le Decl., Ex. “B” ¶ 15; Declaration of Tania Knauerhaze (“Knauerhaze Decl.”), as Ex. “C” ¶ 3.)” (ROA 164, UF No. 80.)
- “In September 2023, Le appointed Scott Smith (“Smith”) to the position of Public Works Director, and he currently holds that position. Smith is one year younger than Plaintiff. Plaintiff testified that she knows Le hired Smith as the Director and knows his age and felt he is qualified. (Le Decl. “Ex. “B” ¶ 15; Knauerhaze Decl., Ex. “C” ¶ 3; Plaintiff’s Depo, Vol. II, 407:12-408:10, Ex. “2”).” (ROA 164, UF No. 81.)

Plaintiff does not dispute these facts. Rather, Plaintiff argues they are not dispositive of Plaintiff’s age discrimination claim.

The case law cited above establishes, however, the undisputed material facts are fatal to Plaintiff’s age discrimination claim. The Motion is GRANTED as to the second cause of action for age discrimination.

IV. Third Cause of Action: Gender Discrimination

In order to establish a prima facie case for gender discrimination, “the plaintiff must provide evidence that (1) [s]he was a member of a protected class, (2) [s]he was qualified for the position [s]he sought or was performing

competently in the position he held, (3) [s]he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 355; Dinslage v. City & Cty. of San Francisco (2016) 5 Cal.App.5th 368, 378.)

Here, Defendant argues that (1) Plaintiff cannot establish that gender discrimination was a discriminating motive in Plaintiff’s termination and (2) Plaintiff’s termination was based on legitimate nondiscriminatory factors. The Court agrees that the undisputed facts establish Defendant did not have a discriminatory motive on the basis of gender when it terminated Plaintiff.

First, Plaintiff does not dispute that “neither Le, the Human Resources Director – Carrie Hanes – nor City Councilmember Ted Bui made any inappropriate comments about Plaintiff’s gender.” Thus, there is no direct evidence that Plaintiff was subject to gender discrimination that resulted in her termination.

Plaintiff attempts to present circumstantial evidence of discriminatory motive but such evidence falls short. (Wawrzenski v. United Airlines, Inc. (2024) 106 Cal.App.5th 663, 687 [“circumstantial evidence of disparate treatment ‘may by itself support a claim for discrimination’”]; Gupta v. Trustees of California State University (2019) 40 Cal.App.5th 510, 519 [“Plaintiffs in FEHA cases can prove their cases by presenting either direct evidence, such as statements or admissions, or circumstantial evidence, such as comparative or statistical evidence.”].)

Plaintiff argues that Councilman Ted Bui’s question to the male Deputy Director Temo Galvez asking why he wasn’t the Public Works Director instead of Plaintiff, Councilman Ted Bui’s comment to the Chief that Plaintiff was not qualified as well as “Lee’s status as the first female Director, the male deputy comparison and the City’s disparate failure to discipline him for the same ‘last straw’ conduct, and the City’s shifting

explanations” all establish discriminatory motive. The Court, however, is not persuaded.

The Court finds that the two comments by Bui are insufficient to establish discriminatory motive, especially when considering Plaintiff’s concession that “neither Le, the Human Resources Director – Carrie Hanes – nor City Councilmember Ted Bui made any inappropriate comments about Plaintiff’s gender.” There is also no evidence that Ted Bui had any influence over the City’s decision to terminate Plaintiff and there must be a connection between the gender biased remarks and Plaintiff’s termination. Rather, the evidence before the Court suggests that the decision to terminate Plaintiff was made following the collaboration of Le, the City attorney, and the HR Department. Again, “section 12940(a) does not purport to outlaw discriminatory thoughts, beliefs, or stray remarks that are unconnected to employment decisionmaking. Racist, sexist, or other biased comments in the workplace may give rise to a claim for unlawful harassment under a separate provision of the FEHA. [Citations.] But such comments alone do not support a claim under section 12940(a), nor do bigoted thoughts or beliefs by themselves. Were it otherwise, the causation requirement in section 12940(a) would be eviscerated. Section 12940(a) does not prohibit discrimination ‘in the air.’ It prohibits discrimination that causes an employer ‘to refuse to hire or employ the person or to refuse to select the person for a training program leading to employment, or to bar or to discharge the person from employment or from a training program leading to employment, or to discriminate against the person in compensation or in terms, conditions, or privileges of employment.’” (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 231, citing § 12940, subd. (j).)

Next, the Court is also not persuaded by Plaintiff’s male deputy director comparison argument. “Comparative evidence is evidence that [the plaintiff] was treated differently from others who were similarly situated but are outside the plaintiff’s protected class. [Citations.] Evidence that an employer treated ‘similarly situated’ employees outside the plaintiff’s protected class ‘more

favorably' is probative of the employer's discriminatory or retaliatory intent. [¶] To be probative, comparative data ... must be directed at showing disparate treatment between employees who are 'similarly situated' to the plaintiff in all relevant respects. [Citations.] In general, individuals are similarly situated when they have similar jobs and display similar conduct." (Gupta v. Trustees of California State University (2019) 40 Cal.App.5th 510, 519-520.)

Here, the Court finds that Plaintiff is not similarly situated to the male deputy director referenced in her opposition. First, Plaintiff is the male deputy director's superior, which already establishes that they are not similarly situated individuals. Plaintiff presents no evidence that the male deputy director had the same job responsibilities as Plaintiff or other facts that would suggest that they are similarly situated in their job responsibilities. Second, Plaintiff does not contend, and the personnel records before the Court do not establish, that Plaintiff was fired for working outside employment despite Le's denial of her outside employment request. Plaintiff argues that the male deputy director received favorable treatment because he worked outside employment over Le's denial but there is not evidence before the Court that Plaintiff displayed similar conduct and was terminated as a result. For these reasons, the court is not persuaded by Plaintiff's male deputy director comparison.

Moreover, Le's deposition testimony establishes the "last straw comment" was directed towards Plaintiff's behavior – not the male deputy director. The "last straw comment" was in reference to Plaintiff's failure to enforce the "no outside employment policy" as the deputy director's supervisor.

The only additional circumstantial evidence Plaintiff provides is her statement that she was the first female hired as director. The fact standing alone is insufficient to establish a discriminatory motive in firing Plaintiff.

The Motion is GRANTED as to the third cause of action for gender discrimination.

108	Legacy Capital Investment Group v. Legacy Investment Group I, 2025-01470274	DEMURRER TO AMENDED COMPLAINT BY DEFENDANT LEGACY INVESTMENT GROUP I, LLC – CONTINUED TO ALLOW MEET AND CONFER Defendant Legacy Investment Group I, LLC, demurs to the first through 5th causes of action in the first amended complaint. Before filing a demurrer, the demurring party must meet and confer in person, by video conference, or by telephone with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading and obviate the need for filing the demurrer. (Code Civ. Proc., § 430.41) If the pleading is amended, the demurring party must meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading. (Code Civ. Proc., § 430.41(a)) The demurring party must identify all of the causes of action it believes are subject to demurrer and identify with legal support the basis of the deficiencies. The party who filed the pleading must explain with legal support the basis for its position that the pleading is legally sufficient or, if it is not, how the pleading could be amended to cure any legal insufficiency. (Code Civ. Proc., § 430.41(a)(1)) A declaration must be filed with the demurrer regarding the results of the meet and confer process. (Code Civ. Proc., § 430.41(a)(3).) In this instance, despite filing a demurrer to five (5) causes of action on two (2) separate grounds, Defendant LEGACY INVESTMENT GROUP I, LLC failed to establish that it met with Plaintiff's counsel to resolve any of these alleged deficiencies in the pleadings. No required declaration was filed. This is especially egregious considering counsel for Plaintiff sought a stipulation to file a Second Amended Complaint, which Defense counsel apparently refused. (Decl. of Yun ¶7.) That is, there appears to be a
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willingness of Plaintiff's counsel to address the concerns in this demurrer.

Demurrer is continued to September 21, 2026, at 9:00 a.m. in Department N14 for lead counsel to meet and confer per code via videoconference or telephone call. Nine (9) Court days prior to the continued hearing date, Defense counsel to submit a declaration in compliance with Code Civ. Proc., §430.41.

Court also sets an OSC re: Sanctions for failure to comply with Code Civ. Proc., §430.41 for September 21, 2026, at 9:00 a.m. in Department N14.

**DEMURRER TO AMENDED COMPLAINT BY
DEFENDANTS RANCHO FENG/DL VENTURE/LLL
REAL ESTATE – SUSTAINED WITH 20 DAYS LEAVE
TO AMEND IN PART AND OVERRULED IN PART**

Defendants Rancho Feng LLC, DL Venture First, LLC, and LLL Real Estate Investment, LLC (the “Member Defendants”) demur to the 6th (breach of fiduciary duty), 7th (breach of contract), 8th (unjust enrichment), 9th (breach of fiduciary duty), 10th (breach of contract), and 12th (conspiracy) causes of action of the FAC. (ROA 102)

The 6th through 8th causes of action are pleaded derivatively under Corporations Code section 800. That section does not apply to LLCs, and these claims should have been pleaded under Corp. Code section 17709.02.

Additionally, these causes do not appear to be derivative claims. An action is derivative if (1) the gravamen of the complaint is injury to the corporation, or to the whole body of its stock and property without any severance or distribution among individual holders. (Grosset v. Wenaas (2008) 42 Cal.4th 1100; Speirs v. BlueFire Ethanol Fuels, Inc. (2015) 243 Cal.App.4th 969) or (2) it seeks to recover assets for the corporation or to prevent the dissipation of its assets. (Grosset v. Wenaas, supra, 42 Cal. 4th 1100.) When lost profits are sought as damages, the gravamen of the complaint is injury to the corporation, not injury to an individual shareholder, and

thus, the action is derivative. (Reilly v. Greenwald & Hoffman, LLP (2011) 196 Cal.App.4th 891.)

The 6th through 8th causes of action do not sufficiently allege a harm to the company. Rather they allege the company paid off a loan that had matured through contributions from the members, some of whom used the process to benefit at the expense of the plaintiffs. (See FAC ¶¶24-31) Paying off a loan, or breach of the operating agreement by some members does not allege a harm to the company.

The demurrer to the 6th-8th causes of action is SUSTAINED with 20 days leave to amend.

The 9th cause of action for Breach of Fiduciary Duty, Plaintiffs allege the member defendants owed fiduciary duties to the member plaintiffs, which duties they breached. (FAC ¶¶102, 103.)

These defendants argue that because the Company is a “manager-managed LLC”, and they were not managers, they owe no fiduciary duties to Plaintiffs. (Corp. Code, § 17704.09, subd. (f); §2.1 of the Operating Agreement, attached to the FAC.)

Plaintiffs argue these defendants are liable for breach of fiduciary duty by virtue of aiding and abetting the breach. (American Master Lease LLC v. Idanta Partners, Ltd. (2014) 225 Cal.App.4th 1451.)

The allegation that “MEMBER DEFENDANTS and each of them knowingly aided, encouraged, cooperated, conspired, agreed and/or participated in, and substantially assisted the other MEMBER DEFENDANTS in the breaches of their fiduciary duties” (FAC ¶ 83) is insufficient. Plaintiffs do not allege the Moving Defendants aided, encouraged, etc. the breach by Jing Ai, Xingcheng Li and Xue Fang Wang. More facts are needed to establish this theory of liability.

The demurrer to the 9th cause of action is SUSTAINED with 20 days leave to amend.

As to the 10th cause of action for Breach of Contract, Plaintiffs plead the member defendants breached the operating agreement by failing “to acquire unanimous decisions from the members of COMPANY for matters regarding the LOAN or any other indebtedness or financing of COMPANY.” (FAC ¶113.) Although Plaintiffs fail to indicate precisely which portion of the Operating Agreement Defendants allegedly breached, there are sufficient facts to put Defendants on notice of the claim. The court declines Defendants’ request to review the operating agreement and decide issues of contract interpretation as a matter of law on demurrer. The demurrer to the 10th cause of action is **OVERRULED**.

Finally, as to the 12th cause of action, conspiracy cannot be alleged as a separate cause of action unless it alleges it alleges the commission of a civil wrong that causes damage. A conspiracy may render additional parties liable for the wrong, but it is not actionable in and of itself without a wrong. (Okun v. Superior Court (1981) 29 Cal.3d 442, 454.)

Plaintiffs argue the Conspiracy is in connection with the 11th cause of action for Concealment. However, there is nothing in the FAC to establish that Plaintiffs seek to hold Defendants liable for the conspiracy in connection with concealment. Additionally, no facts are alleged to sufficiently plead conspiracy as a cause of action.

Plaintiffs allege:

127. Each MEMBER DEFENDANTS was aware of each other’s plan to breach their fiduciary duty and exclude MEMBER PLAINTIFFS by concealing material facts from them.

128. Each MEMBER DEFENDANTS agreed and intended that the harm to MEMBER PLAINTIFFS be committed.

129. MEMBER PLAINTIFFS allege that each MEMBER DEFENDANTS had more than mere knowledge of the wrongful act.

		(FAC¶¶127-129.) This is insufficient. The Demurrer is SUSTAINED with 20 days leave to amend as to the 12th cause of action. The request for judicial notice is denied. None of the exhibits is a proper matter for judicial notice. Defendants to give notice.
109	Lopez v. Flores, 2024-01435693	MOTION FOR JUDGMENT ON THE PLEADINGS – GRANTED WITH 10 DAYS LEAVE TO AMEND Defendant/Cross-Complainant Mayra Isabel Flores Flores’ (“Flores”) Motion for Judgment on the Pleadings as to her Cross-Complaint is GRANTED with leave to amend. Although Plaintiff/Cross-Defendant Jocelynn Denise Lopez’s (“Lopez”) did not file opposition to the motion, her counsel submitted a late declaration explaining they intended to oppose the motion and seek leave to amend the answer to the cross-complaint. The failure to oppose the motion is an admission that the motion for judgment on the pleadings has merit. (See Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20 [“Plaintiffs did not oppose the County’s demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”].) In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. (DuPont Merck Pharmaceutical Co. v. Sup. Ct. (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) The court will, however, permit Lopez to file the first amended answer. The court rejects Flores’s arguments that the answer is incapable of amendment because the

		general denial effectively admitted all allegations of the verified cross-complaint, or because Lopez litigated the case for over a year under the unverified answer. The motion for judgment on the pleadings is GRANTED. The amended verified answer attached to counsel's declaration (ROA # 85) shall be filed within 10 days. Moving Party to give notice.
110	Luo v. Lu, 2025-01522336	DEMURRER TO COMPLAINT - OVERRULED as to the first and second causes of action and SUSTAINED with leave to amend as to the third and fourth causes of action. MOTION TO STRIKE – DENIED Plaintiff Fanzhou Luo alleged Defendant Chienyu Lu fraudulently transferred real property to Defendants Quan Nguyen and Johanne Tsui (together, "Moving Defendants") to protect that property from a judgment Plaintiff obtained against Chienyu Lu in a separate action. Moving Defendants demur to all causes of action alleged against them. <u>First and Second Causes of Action for Intentional and Constructive Fraudulent Transfer</u> (Civil Code §3439.04(a)(1) and (2)) "Under the U[V]TA, a transfer can be invalid either because of actual fraud (Civ. Code, § 3439.04, subd. (a)) or constructive fraud (id., §§ 3439.04, subd. (b), 3439.05)." (Potter v. Alliance United Ins. Co. (2019) 37 Cal.App.5th 894, 904 (citing Mejia v. Reed (2003) 31 Cal.4th 657, 661).) A transfer is voidable as to a creditor, whether the creditor's claim arose before or after the transfer was made, if the debtor made the transfer (1) with the actual intent to hinder, delay, or defraud any creditor, or (2) without receiving reasonably equivalent value and as a result the debtor became (or believed/intended he would become) insolvent. (Id., citing Civ. Code § 3439.04(a)(1) & (2).)

Here, Plaintiff first alleges a voidable transfer made with actual fraud – that is, fraudulent transfer under Civil Code section 3439.04(a)(1).

Such a voidable transfer is one made (1) by the “debtor” (one who is liable on a claim) (2) with actual intent to hinder, delay or defraud any creditor of the debtor. Civ. Code §§ 3439.01(e), 3439.04(a)(1). “Actual intent” may be determined from a number of factors enumerated by statute, commonly referred to as “badges” of fraud. (Civ. Code §3439.04(b)(1)-(11); *Filip v. Bucurenciu* (2005) 129 Cal. App. 4th 825, 834.)

The Complaint alleges that the Subject Property was transferred by Defendant Lu to the Moving Defendants shortly before trial was to commence in Plaintiff’s underlying action against Lu. (Compl. ¶¶ 12-13.) The transfer was made to avoid paying debt to Plaintiff. (Compl. ¶ 18.) Lu subsequently lived in the Subject Property despite having transferred it to Moving Defendants. (Compl. ¶ 15.)

Whether the debtor retained possession or control of the property transferred after the transfer and whether the transfer occurred shortly before or shortly after a substantial debt was incurred are both “badges” of fraud enumerated in Civ. Code §3439.04(b).

Where a voidable transfer is shown, the “creditor may recover judgment for the value of the asset transferred, as adjusted under subdivision (c), or the amount necessary to satisfy the creditor's claim, whichever is less. The judgment may be entered against the following: (A) The first transferee of the asset or the person for whose benefit the transfer was made. (B) An immediate or mediate transferee of the first transferee, . . .” (Civ. Code, § 3439.08(b)(1).)

Here, Plaintiff has alleged a voidable transfer under the statute based on actual fraud.

As to constructive fraud, the Complaint alleges that “Lu did not receive a reasonably equivalent value in exchange for the transfer” and that “Lu intended to

incur debts beyond their ability to pay as they became due.” (Compl. ¶21(e) and (f).) Moving Defendants contend that these are conclusory allegations, which are insufficient to meet the heightened pleading standard for a fraud-based allegation. However, “[l]ess specificity should be required of fraud claims when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy; even under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party.” (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384.)

The Court finds that Plaintiff has sufficiently pled a voidable transfer based on constructive fraud.

Accordingly, the demurrer to the first and second causes of action is OVERRULED.

Third and Fourth Causes of Action for Money Had and Received and Open Book Account

“In the common law action of general assumpsit, it is customary to plead an indebtedness using “common counts.” [Citation.] In California, it has long been settled the allegation of claims using common counts is good against special or general demurrers. [Citation.] The only essential allegations of a common count are “(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.” [Citation.] A cause of action for money had and received is stated if it is alleged the defendant “is indebted to the plaintiff in a certain sum ‘for money had and received by the defendant for the use of the plaintiff.’ ” [Citation.]” (Farmers Ins. Exchange v. Zerín (1997) 53 Cal.App.4th 445, 460.)

Here, although the Complaint contains conclusory allegations that “Defendants” have money that belongs to Plaintiff, the specific factual allegations of the Complaint only state that Defendant Lu transferred the Subject Property to the Moving Defendants (Compl. ¶

		13.) There is no allegation that any money was transferred to Moving Defendants. There is also no allegation showing that Moving Defendants are indebted to Plaintiff, or that Plaintiff provided any form of consideration to Moving Defendants. The demurrer as to the third and fourth causes of action is SUSTAINED with 20 days leave to amend. <u>Motion to Strike</u> Defendants Quan Nguyen and Johanne Tsui's (together, "Moving Defendants") motion to strike portions of Plaintiff Fanzhou Luo's Complaint is DENIED without prejudice. Moving Defendants did not comply with CRC 3.1322: "A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." Accordingly, the Court is unable to ascertain exactly what Moving Defendants seek to strike from the Complaint. Moving Parties to give notice.
111	O'Kane v. Radovich, 2022-01276312	MOTIONS TO BE RELIEVED AS COUNSEL – GRANTED AS TO TWO PARTIES, MOOT AS TO THE THIRD PARTY The unopposed motions of attorney W. Michael Hensley of FBT Gibbons LLP to be relieved as counsel for (1) Defendant R&R Holdings, I.B., LLC, a Nevada limited liability company, and (2) Defendant Kevin J. Prendiville are GRANTED. Service on the clients and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362.

		Importantly, a corporation must be represented in court by an attorney. As such, Defendant R&R Holdings, I.B., LLC, a Nevada limited liability company is ORDERED to obtain new counsel within a reasonable time. (CLD Constr., Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1150 [“[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.”].) The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the clients. Moving attorney shall also give the clients notice of the currently scheduled hearing dates and trial date. There is also a motion to be relieved as counsel for Defendant Gorton Vallely. A substitution of attorney for this defendant was filed on 04/10/2026. Therefore, that motion is moot. Moving attorney to give notice.
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